

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Cooper	Team: Squad #11	CCRB Case #: 201507671	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 09/04/2015 5:36 AM	Location of Incident: [REDACTED]	Precinct: 108	18 Mo. SOL 3/4/2017	EO SOL 3/4/2017	
Date/Time CV Reported Fri, 09/04/2015 6:35 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 09/10/2015 11:14 AM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Roger Nehl	02892	954172	108 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Keith Schlobohm	07890	953379	108 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Roger Nehl	Discourtesy: PO Roger Nehl spoke discourteously to § 87(2)(b) [REDACTED]	[REDACTED]
B.POM Roger Nehl	Abuse: PO Roger Nehl threatened to arrest § 87(2)(b) [REDACTED]	[REDACTED]

Case Summary

On September 4, 2015, at approximately 5:36 a.m., § 87(2)(b) placed a call to 911 from his home § 87(2)(b) in Queens. During the call § 87(2)(b) reported his mother was missing. PO Roger Nehl and PO Keith Schlobohm from the 108th Precinct responded to § 87(2)(b)'s 911 call and spoke to him regarding the report that his mother was missing. During the conversation, PO Nehl allegedly told § 87(2)(b) that he was “a piece of shit” (**Allegation A**) and told § 87(2)(b) that he would put him in jail (**Allegation B**).

There is no video evidence for this case.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) accepted mediation; however, due to the difficulty of identifying the officers the case was investigated.
- As of December 8, 2015, a Notice of Claim for § 87(2)(b) is pending. (**Board Review 2**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Civilian and Officer Histories

- This is the first complaint filed by § 87(2)(b) (**Board Review 1**).
- PO Roger Nehl has been a member of service for two years and this is his first CCRB complaint.

Findings and Recommendations

Allegation A- Discourtesy- PO Roger Nehl spoke discourteously to § 87(2)(b)

Allegation B- Abuse of Authority- PO Roger Nehl threatened to arrest § 87(2)(b)

It is undisputed that § 87(2)(b) called 911 to report that his mother was missing, and that he did not call his sister to see if their mother was with her because he does not get along with his sister.

When PO Nehl and PO Schlobohm were speaking to § 87(2)(b) PO Nehl allegedly told § 87(2)(b) that he was a liar and “a piece of shit.” PO Nehl told § 87(2)(b) that his mother did not live at his house and that she lived with his sister and PO Nehl told § 87(2)(b) that he would put him in jail.

PO Nehl and PO Schlobohm both stated that upon arriving at § 87(2)(b)'s house that they both asked § 87(2)(b) several times when he last saw his mother. § 87(2)(b) did not answer the officers' questions. PO Nehl stated that § 87(2)(b) told the officers numerous times that his mother went to bed at 6pm. Although § 87(2)(b) understood their questions, there did seem to be a bit of language barrier. Sometime during the conversation the officers discovered that § 87(2)(b)'s mother might be at his sister's house located at § 87(2)(b) in Queens. The officers drove to that location and § 87(2)(b)'s mother was found; her identity and well-being were confirmed. She stated that she was having a dispute with her son. The officers then returned to § 87(2)(b)'s home.

Upon returning to § 87(2)(b)'s home, PO Nehl stated that he told § 87(2)(b) "Someone who reports false information with the intention of filing a false report knowing that it is incorrect when providing that information can result in that person being arrested and I want you to know about that." PO Nehl denied that he or PO Schlobohm told § 87(2)(b) that he would be arrested. PO Nehl denied that he told § 87(2)(b) that he was a liar and "a piece of shit" and he did not hear PO Schlobohm say that. PO Nehl did not use any profanity, and PO Nehl did not whether or not PO Schlobohm used any profanity.

PO Schlobohm also denied that he told § 87(2)(b) he would be arrested and did not recall hearing that. PO Schlobohm denied that he told § 87(2)(b) that he was a liar or a piece of "shit" and did not recall if PO Nehl said that.

§ 87(2)(g)

"A person is guilty of falsely reporting an incident in the third degree when, knowing the information conveyed, or circulated to be false or baseless, he or she: initiates or circulates a false report or warning of an alleged occurrence or impending occurrence of a crime, catastrophe or emergency under circumstances in which it is not unlikely that public alarm or inconvenience will result." N.Y.S. Penal Law, Section 240.50 (**Board Review 4**).

§ 87(2)(g)

Squad:

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date